

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 14, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 20, 2012. Motion (per Consent Agenda) carried.

[CA] Minutes from Sine Die Session of the Governing Body on January 7, 2013. Motion (per Consent Agenda) carried.

[CA] Minutes from the First Regular Meeting of the Governing Body on January 7, 2013. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and Radio Station KYOY FM respectively) and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the east half of the east half of Section 20, and a portion of the southwest quarter of the southwest quarter of the northwest quarter of Section 21, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 1500 feet north of the intersection of Converse Avenue and Ogden Road). Jim Flesher, Planning and Development Office, reviewed annexation requirements and criteria pursuant to Wyo. Stat. § 15-1-402, stating that the proposed area to be annexed deviates substantially from the City's PlanCheyenne, Unified Development Code and Master Transportation Plan documents. He reviewed staff findings with regard to compliance, or non-compliance, with Wyo. Stat. § 15-1-402 (a) (i) through (vi). Mr. Flesher advised of areas of

non-compliance involving criteria outlined in W.S. § 15-1-402 (a) (i) through (iii), noting the following topics: Storm water drainage facility involving the proposed annexed area, which would be located outside of the area to be annexed; inability to utilize the limited “strips” of open public space area; street(s) connectivity problems relative to existing roadways and the transportation plan, and “piecemeal” development affecting long range planning, zoning and future property uses. He stated findings involving conditions outlined in W.S. § 15-1-402 (iv through vi) had been met with regard to property contiguity, franchises being in place to serve the property, and annexation summary notification requirements. Frank Cole, United Western Corporation, petitioner for annexation, stated that the first three items (i.e. findings previously noted by Mr. Fleisher as not being in compliance) pertained to platting problems and not annexation. He requested postponement of a companion agenda item (#21 - Resolution), which had been referred to Public Services Committee under the approved Consent Agenda motion earlier in the meeting, as he would not be available to attend the Committee meeting. Upon inquiry, Mr. Cole verified the property to be annexed is on the east side of Converse Ave. and was not the Scenic property development area located west of Converse Ave. Upon inquiry, Mr. Fleisher confirmed the first three criteria items contained in Wyo. Stat. § 15-1-402 were those that have not been met; the last three criteria items have been met. Upon inquiry, Brandon Cammarata, Planning and Development Director, advised a preliminary plat related to the proposed development was postponed at the recent Planning Commission meeting for further review to address concerns, which include the open space planned for the area. Mayor Kaysen advised of city code language relative to items for Committee referral not being eligible for removal from the Consent Agenda, and indicated that at the next Public Services Committee meeting members could consider recommending postponement of the affiliated Resolution agenda item at that time, per Mr. Cole’s request. Upon inquiry, Mr. Cole acknowledged that would be acceptable to him. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for RMH Franchise Corporation d/b/a Applebee’s Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming (License currently held by Concord Neighborhood Corporation d/b/a Applebee’s Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming). There being no comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from P Public District to CBD Central Business District for Lot 1, Block 1, 2100 Pioneer Subdivision, Cheyenne, Wyoming (located at 2100 Pioneer Avenue). Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body. (#3964)

ORDINANCE - Granting a Franchise by the City of Cheyenne to High West Energy, Inc., its successors and assigns, the right to furnish, sell and distribute electricity to the City and to all persons, businesses, and industry within a portion of the City in High West’s Certificated Territory

and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Brian Heithoff, General Manager for High West Energy, advised he was available to answer any questions. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute ordinance dated 01-11-2013, seconded by Mr. Luna. Upon inquiry, Dan White, City Attorney, advised the substitute changes language in Section 2.3 relating to the term of the franchise due to delays since the initial ordinance was submitted. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion, as amended by substitute, carried. Voting "yes" -- all members of the governing body with the exception of Dr. Rinne and Mayor Kaysen voting "no". (#3965)

ORDINANCE - Granting a Franchise by the City of Cheyenne to Cheyenne Light, Fuel and Power Company, its successors and assigns, the right to furnish, sell and distribute electricity to the City and to all persons, businesses, and industry within a portion of the City in Cheyenne Light, Fuel and Power Company's Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute electricity within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Mark Stege, Vice President of Operations for Cheyenne Light, Fuel and Power, advised he was available to answer any questions. Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute ordinance dated 01-11-2013, seconded by Mr. Cook. City Attorney Dan White advised the substitute changes language in Section 2.3 relating to the term of the franchise and noted that ordinance effectiveness would be when all of Section 18 requirements had been met. Appreciation was expressed to both Cheyenne Light and High West companies for working together and providing information. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion, as amended by substitute, carried. Voting "yes" -- all members of the governing body. (#3966)

ORDINANCE - Amending Section 12.16.020, Planting of certain species of trees and shrubs in public rights-of-way - Limited, of Chapter 12.16, Trees and Shrubs, of Title 12, Streets, Sidewalks and Public Places, of the Cheyenne City Code pertaining to the planting of certain trees within the tree lawn area. Mr. Allen moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the Zoning Classification from CB Community Business District to MUB Mixed-Use with Business Emphasis District for Lot 4, Block 486, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Hugur Avenue and E. 12th Street, approximately 500 feet northwest of the intersection of Logan Avenue and Nationway) -- referred to Public Services Committee (sponsor - Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from HR-2 High Density Residential – Developing District to MR-2 Medium Density Residential – Developing District for Lots 1-6, Block 1, and Lots 1-6, Block 2, Diamond Estates, Fourth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Rio Verde Street and Pierce Avenue) -- referred to Public Services Committee (sponsor - Mr. Allen).

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with Swan Ranch Properties, LLC, Lot One, Block 1, Energy Park One, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5465)

[CA] RESOLUTION - Directing the City Clerk to schedule a Public Hearing pursuant to Section 5.12.040(2) of the Cheyenne City Code to receive public comment on violations of City ordinances and state laws pertaining to the sale of alcoholic beverages, which violations have occurred at 'Mingles Bar' and to provide a notice of said Public Hearing to Stillwater, Inc., dba 'Mingles Bar'. Motion (per Consent Agenda) carried. (#5466)

[CA] RESOLUTION - Adopting the combined Cheyenne/Laramie County Hazard Mitigation and Strategy Plan 2012 -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

RESOLUTION - Authorizing the Mayor and City Clerk to execute all documents as necessary to sell three City-owned properties located at 515 Morrie Avenue, 916 East 5th Street and 922 East 5th Street, Cheyenne, Laramie County, Wyoming, together with all improvements thereon -- referred to Finance Committee (sponsor - Mr. Brown). Mr. Brown advised the item was reviewed under other items for the agenda at Finance Committee, and provisions of Title 2 of City Code have been met. Mr. Brown moved to adopt, seconded by Ms. Broyles. Dan White, City Attorney, clarified the properties were previously declared surplus and then sold pursuant to Wyo. Stat. § 15-5-112 (a), which calls for sealed bids or public auction to dispose of the properties. He advised these procedures were followed, but the title company involved in the closing (scheduled for 01/15/2013) had decided at the last minute that they would like a resolution from the City authorizing the Mayor and City Clerk to execute the documents, which is the purpose of the resolution and the need to act on it in a timely manner. Motion carried. Voting "yes" -- all members of the governing body. (#5467)

[CA] RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the East Half of the East Half of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter of Section 21, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road) -- referred to Public Services Committee (sponsor - Mr. Allen).

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Capitol Basin West Edge Trunk-line Interceptor Project -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Lake Minnehaha Water Quality and Drainage Project, Phase II -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for two traffic signals at 19th Street and Evans Avenue, and 20th Street and Evans Avenue -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Prioritizing the City of Cheyenne's three Grant requests for Mineral Royalty Capital Construction Account Grant (Chapter 3) applications to the State Loan and Investment Board for the application deadline of February 21, 2013 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Supporting an Agreement, and Authorizing the Mayor to sign a Contingency & Development Agreement between parties involved in the Microsoft Dataplant Demonstration Project utilizing Grant funds from the Wyoming Business Council -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Preliminary Plat for Diamond Estates, Fourth Filing, a replat of a portion of Tract 316, Sunnyside Addition, Seventh Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Rio Verde Street and Pierce Avenue) -- referred to Public Services Committee.

[CA] Professional Services Agreement between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization (MPO) and Transit Plus for the 2013 Transit Development Plan for Cheyenne Transit Program (MPO Planning funds). Motion (per Consent Agenda) carried (amount not to exceed \$49,926.00). (#5948)

[CA] Professional Services Contract between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization (MPO) and Fehr & Peers for 2010 Travel Demand Forecasting Model Calibration (MPO Planning funds) -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayres Associates for additional design services for the East Pershing Boulevard reconstruction project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds). Motion (per Consent Agenda) carried (amount not to exceed \$106,043.00). (#5496)

[CA] Consideration of Bid #R-8-13 for furnishing one new 2012-2013 backhoe loader from Titan Machinery, Cheyenne, WY, for the Concrete Division (2011-2014 1% Sales Tax). Motion (per

Consent Agenda) carried (amount not to exceed \$99,208.18).

[CA] Consideration of Bid #M-7-13 for a contract between the City of Cheyenne and Inman Roofing, Inc., Cheyenne, Wyoming, for roof replacement at the Neighborhood Facility Building -- referred to Finance Committee.

Announcement was made of the Appointment of Jane M. France to the Community Action of Laramie County, Inc. Board of Directors, to be confirmed January 28, 2013.

Announcement was made of the Re-Appointments of Shane Moore, Charles R. Livermont and Gale Shenefelt to the Mayor's Council for People with Disabilities, to be confirmed January 28, 2013.

Announcement was made that due to the Martin Luther King, Jr. Holiday on Monday, January 21, 2013, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 22, 2013 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 23, 2013 at Noon.

M. Lee Hasenauer, Laramie County Commissioner, requested information on the status of the annual review of the City's UDC (Unified Development Code). Matt Ashby, Planning Services Director, advised comments have been received from the public, staff and City Council members and staff is in the process of compiling the comments for the Planning Commission meeting to be held Feb. 19, 2013. Mayor Kaysen briefly advised of the process involving the governing body after the review by the Planning Commission.

Welcome was extended to Amber Ash, M. Lee Hasenauer, and Buck Holmes, Laramie County Commissioners, who were in attendance at the meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:40 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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